

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X

JOSEPH LIQUORI,

Plaintiff.

-against-

AMENDED COMPLAINT

10CV1779(ARR)(RLM)

THE CITY OF NEW YORK, DETECTIVE
TIMUR E EVREN, DETECTIVE
ANOTHONY MAIDA, SERGEANT
LUKE DENESPOLIS, and POLICE
OFFICER JOHN DOE,
Individually and in their Official Capacities,

Defendants.

-----X

Plaintiff, JOSEPH LIQUORI, by and through his attorneys, **Fisher, Byrialsen & Kreizer PLLC**, complaining of the defendants herein, respectfully shows the Court and alleges:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983, and 1988, for the wrongful acts of Defendants THE CITY OF NEW YORK, DETECTIVE TIMUR E. EVREN, DETECTIVE ANOTHONY MAIDA and SERGEANT LUKE DENESPOLIS, as Officers of the New York City Police Department, acting under color of state law and pursuant to their authority, in violation of Plaintiff's rights secured by the Civil Rights Act of 1871, 42 U.S.C. §§ 1981, 1983, 1988; by the United States Constitution, including its Fourth, Fifth, Eighth, and Fourteenth Amendments; and by the laws and Constitution of the State of New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983, and 1988, and the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, and the constitutional, statutory, and common laws of the State of New York.

3. Jurisdiction is invoked herein pursuant to the aforementioned statutory and constitutional provisions and pursuant to 28 U.S.C. §§ 1331, 1343, this being an action seeking redress for the violation of the plaintiff's constitutional and civil rights.

4. Plaintiff further invokes this Court's pendent jurisdiction over any and all state-law claims and causes of action which derive from the same nucleus of operative facts that give rise to the federally based claims and causes of action pursuant to 28 U.S.C. § 1367.

VENUE

5. Venue is properly laid in this District under 28 U.S.C. § 1391(b), this being the District in which the claim arose.

NOTICE OF CLAIM

6. Plaintiff Joseph Liquori filed a Notice of Claim with the Comptroller of the City of New York within 90 days of the events complained of herein. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

TRIAL BY JURY

7. Plaintiffs demand a trial by jury on each and every one of their claims as pled herein pursuant to Fed. R. Civ. P. 38(b).

PARTIES

8. At all times relevant hereto Plaintiff Joseph Liquori was and is a citizen of the United States and was residing in Brooklyn, New York at the time of the incident.

9. At all times relevant hereto defendant The City of New York (hereinafter, "NYC") was and is a municipality of the State of New York and owns, operates, manages, directs, and controls the New York City Police Department, which employs the other named Defendants.

10. At all times relevant to this action, Defendants DETECTIVE TIMUR E. EVREN, DETECTIVE ANOTHONY MAIDA and SERGEANT LUKE DENESPOLIS are and were police officers employed by the New York City Police Department (hereinafter, "NYPD"), and acting under color of state law. They are being sued in both their individual and official capacities.

11. At all times relevant hereto and in all their actions described herein, Defendants DETECTIVE TIMUR E. EVREN, DETECTIVE ANOTHONY MAIDA and SERGEANT LUKE DENESPOLIS were acting under color of statutes, ordinances, regulations, policies, customs, and usages of the NYPD and NYC, pursuant to their authority as employees, servants, and agents of the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents, and police officers.

12. NYC was responsible for the hiring, training, supervision, discipline, retention, and promotion of the police officers, sergeants, and/or employees of the NYPD. They are being sued both in their individual and official capacity.

FACTS

13. On November 11, 2009, at approximately 10:00 p.m., Plaintiff Joseph Liquori, was parked outside of 417 Brightwater Court in Brooklyn, New York.

14. Plaintiff Joseph Liquori was waiting in his car for a friend who was inside the building located at 417 Brightwater Court in Brooklyn, New York.

15. Plaintiff Joseph Liquori was not engaged in any illegal conduct while he waited in his car outside 417 Brightwater Court, Brooklyn, New York.

16. As Plaintiff Joseph Liquori was waiting in his parked car, a minivan pulled up next to him, slowed down, and the two men riding in the minivan stared menacingly at Mr. Liquori.

17. The minivan proceeded to drive about ten feet in front of Plaintiff Liquori's car, and then it backed up right in front of Mr. Liquori's car.

18. The men in the minivan then swung the doors open, exited the minivan, and continued to stare down at Mr. Liquori as they rapidly approached Mr. Liquori's car on foot.

19. The men approaching Mr. Liquori's car were dressed in plain clothes and made no indication as to whether or not they were police officers.

20. When the defendants started to approach Plaintiff Liquori, he felt scared for his life, and he drove his car in reverse to escape from the men approaching his car.

21. The men from the minivan then continued to chase after Mr. Liquori's car on foot.

22. When Mr. Liquori attempted to drive his car down a one-way street to escape from the men running after him on foot, another van, which had no markings indicating that it was a police vehicle, cut him off.

23. Because he could no longer drive forwards, Plaintiff Liquori proceeded to put his car in park and jumped out of his car.

24. A man exited the van that had cut off Mr. Liquori on the one-way street.

25. Mr. Liquori observed that the man who exited the van that cut him off had a shield around his neck.

26. Mr. Liquori approached the man with the shield around his neck, and pleaded for help. He advised the man that there were two other men chasing him and trying to kill him and that he had no idea why they were after him.

27. The man with the shield said that the other two men chasing him were also police officers.

28. The man with the shield did not make any other response to Mr. Liquori's plea for help.

29. The two men who were running on foot reached Mr. Liquori and immediately began punching him.

30. Plaintiff Liquori pleaded with the officers who were beating him that he had done nothing wrong and advised that if he had known they were cops he never would have driven away.

31. The officers continued to punch and beat Plaintiff Liquori for approximately two minutes.

32. While Mr. Liquori was on the ground on his hands and knees, one of the police officers grabbed Mr. Liquori's GPS navigation system that had fallen on the ground and slammed it into Mr. Liquori's forehead.

33. After the navigation system hit Mr. Liquori in the forehead, he was dazed from the impact, felt an immense pressure, and he began to bleed profusely from the area where he was struck.

34. The officers then called an ambulance.

35. The officers told Mr. Liquori to lay face down on the ground so they could handcuff him; Mr. Liquori complied with their request and was placed in handcuffs.

36. The ambulance arrived at the scene and transported Mr. Liquori to Coney Island Hospital.

37. While Mr. Liquori was being transported to Coney Island Hospital, he was handcuffed to a gurney and when he began to fade in and out of consciousness, the paramedics gave him oxygen.

38. After Mr. Liquori arrived at the hospital, his clothing was soaked in blood and the officer advised that he should change his clothes.

39. Mr. Liquori asked his father to drop off his new clothes at the hospital and take his old clothing, but the officers refused to allow Mr. Liquori's father to come to the hospital.

40. Mr. Liquori's father dropped the fresh clothing at the precinct, and an officer transported the clothing to the hospital, but Mr. Liquori's old clothing was not returned to his father.

41. At Coney Island Hospital, Mr. Liquori received an anesthetic to his head, ten stitches in his head and an MRI of his head.

42. The results of the MRI were normal.

43. The police officers then transported Mr. Liquori to the police precinct.

44. When Mr. Liquori arrived at the precinct, he was still in great pain, so he requested to have a room with a bed where he could lay down.

45. Mr. Liquori was placed in a cell with a bed, however, the toilet in the cell was overflowing with feces and there were flies infesting the cell.

46. Mr. Liquori remained at that precinct for about three hours.

47. The police officers then transported Mr. Liquori to another precinct.

48. Mr. Liquori again requested a cell where he could lay down due to his head injuries and he was provided with such a cell.

49. Plaintiff Liquori remained at the second precinct for approximately three to four hours.

50. Plaintiff Liquori was then transported to Central Booking.

51. While Mr. Liquori was in Central Booking he was finally permitted to call his father, and his father was the first person to advise him of the charges being brought against him and that he was arrested for reckless driving and resisting arrest.

52. Mr. Liquori remained in Central Booking for more than 24 hours before being arraigned before a judge the following morning.

53. Mr. Liquori then received an Adjournment in Contemplation of Dismissal regarding the charges.

54. As a result of the injuries that Mr. Liquori endured during this arrest, he had to miss about a week and a half of work to recover from his injuries.

55. This arrest has also negatively impacted Mr. Liquori's personal life and his head injury has resulted in daily headaches, head throbbing and itching, and difficulty sleeping.

56. Mr. Liquori has also received medical bills for the treatment he received at Coney Island Hospital.

57. On or about December 22, 2009, and within ninety (90) days of the incident, a Notice of Claim on behalf of Plaintiff was served upon NYC.

58. At least thirty (30) days have elapsed since said demand and/or claim upon which

this action is in part predicated was presented to NYC for adjustment and NYC has neglected and/or refused to adjust and/or make payment.

59. This action is commenced within one (1) year and ninety (90) days of the occurrence herein.

**FIRST CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS**

60. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

61. All of the aforementioned acts of Defendants, their agents, servants, and employees were carried out under color of state law.

62. All of the aforementioned acts deprived Plaintiff of the rights, privileges, and immunities guaranteed citizens of the United States by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

63. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

64. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

65. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of his/her

respective municipality/authority, which is forbidden by the Constitution of the United States.

66. By these actions, these Defendants have deprived Plaintiff of rights secured by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983, for which the Defendants are individually and jointly liable.

**SECOND CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

67. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

68. The degree of force used by Defendants was excessive, unreasonable, and unwarranted.

69. Defendants' actions were intentional, willful, malicious, egregious, grossly reckless and negligent, unconscionable, and unprovoked.

70. As a result of the excessive force and brutality, Plaintiff Liquori sustained substantial pain and injury to his head, and he has endured serious emotional and psychological distress.

71. All of the aforementioned acts of the Defendants constituted excessive force under the laws of the State of New York and the Defendants are liable said damage. Pursuant to 28 U.S.C. § 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

**THIRD CLAIM FOR RELIEF:
ASSAULT AND BATTERY**

72. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

73. By the aforementioned actions, the Defendants did inflict assault and battery upon

the Plaintiff. The acts and conduct of the Defendant Police Officers were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

74. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific bodily injury, pain and suffering, great humiliation, mental anguish, costs, and expenses and were otherwise damaged and injured.

**FOURTH CLAIM FOR RELIEF:
FALSE ARREST**

75. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

76. As a result of Defendants' aforementioned conduct, Plaintiff was subject to an illegal, improper, and false seizure and arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated, and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege, or consent.

77. As a result of his false arrest, Plaintiff was subjected to humiliation, mental anguish, ridicule, and disgrace and was deprived of his liberty. Plaintiff was discredited in the minds of many members of the community.

78. All of the aforementioned acts of the Defendants constituted false arrest under the laws of the State of New York and the Defendants are liable for said damage. Pursuant to 28 U.S.C. § 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

**FIFTH CLAIM FOR RELIEF:
FALSE IMPRISONMENT**

79. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

80. As a result of his false imprisonment, Plaintiff was subjected to humiliation, ridicule, mental anguish and disgrace and was deprived of his liberty. Plaintiff was discredited in the minds of many members of the community.

81. All of the aforementioned acts of the Defendants constituted false imprisonment under the law of the State of New York and the Defendants are liable said damage. Pursuant to 28 U.S.C. § 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

**SIXTH CLAIM FOR RELIEF:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

82. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

83. Defendants NYC, Defendants DETECTIVE TIMUR E. EVREN, DETECTIVE ANOTHONY MAIDA and SERGEANT LUKE DENESPOLIS engaged in extreme and outrageous conduct beyond all possible bounds of decency when they beat Plaintiff Liquori.

84. Defendants' extreme and outrageous conduct was intended to inflict severe distress upon Plaintiff Liquori when they beat him.

85. Defendants DETECTIVE TIMUR E. EVREN'S, DETECTIVE ANOTHONY MAIDA'S and SERGEANT LUKE DENESPOLIS' outrageous conduct did inflict severe distress upon Plaintiff Liquori, which caused Plaintiff Liquori to suffer anxiety and mental anguish.

86. All of the aforementioned acts of the Defendants constituted intentional infliction of emotional distress under the law of the State of New York and the Defendants are liable for said damage. Pursuant to 28 U.S.C. § 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

**SEVENTH CLAIM FOR RELIEF:
MUNICIPAL LIABILITY**

87. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

88. Defendant Police Officers used excessive and unreasonable force during the stop, search, and arrest of Plaintiff despite a lack of force or resistance by Plaintiff, notwithstanding knowledge that said force would jeopardize Plaintiff's liberty, well-being, safety, and constitutional rights.

89. The Defendant Police Officers failed to protect Plaintiff from the violation of his civil and constitutional rights by the other Defendant officers' use of excessive and unreasonable force against Plaintiff.

90. The acts complained of were carried out by the aforementioned Defendants in their capacities as police officers and officials, with the entire actual and/or apparent authority attendant thereto.

91. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

92. The aforementioned customs, policies, usages, practices, procedures, and rules of NYC and the NYPD included, but were not limited to, initiating and continuing criminal proceedings without evidence of criminal activity.

93. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD constituted deliberate indifference to the safety, well-being, and constitutional rights of Plaintiff.

94. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

95. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.

96. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.

97. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were directly responsible for the violation of Plaintiff's constitutional rights.

98. Defendant NYC, as municipal policymaker in the training and supervision of Defendant police officers, has pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violations of their freedom from the excessive use of force and unreasonable force and freedom from deprivation of Liberty without Due process of law in violation of the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

99. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from unreasonable search and seizure under the Fourth and Fourteenth Amendments to the United States Constitution;
- c. To be protected against violations of her civil and constitutional rights;
- d. To be free from intentional assault, battery, and infliction of emotional distress;
- e. Not to have cruel and unusual punishment imposed upon her; and
- f. To receive equal protection under the law.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment and prays for the following relief, jointly and severally, against the Defendants:

1. Special and compensatory damages in the amount of ONE HUNDREND THOUSAND (\$100,000.00) DOLLARS; and
2. Punitive damages in the amount of FOUR HUNDRED THOUSAND (\$400,000.00) DOLLARS; and
3. Reasonable attorney's fees and costs; and
4. Such other and further relief as this Court deems just and proper.

DATED: New York, New York
 October 28, 2010

Respectfully submitted,

/s/

Alissa Boshnack, Esq. (AB0977)

FISHER, BYRIALSEN & KREIZER PLLC
Attorney for Plaintiff
291 Broadway, Suite 709
New York, New York 10007
(347) 289-5101